

		states the correct deadline to file the Motion for Final Approval based on the new proposed hearing date. The Motion for Final Approval will be set in accordance with the Court’s Order Granting Preliminary Approval after Class Counsel proposes a realistic date. All papers for the Motion for Final Approval must be filed and served no later than sixteen (16) court days before the hearing date. If Class Counsel cannot meet this deadline, then they must request a continuance of the hearing. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. At the Final Approval hearing, evidence supporting the request for an award of attorneys’ fees should be presented in the form of time records or a summary of time spent on the substantive tasks, so as to enable the Court to evaluate the lodestar and costs claimed. Class Counsel should state by declaration whether time records were kept and created contemporaneously or otherwise. The Court also reminds Class Counsel that although a determination regarding the amount of the attorneys’ fees award will not be made until final approval, the Court is unlikely to approve attorneys’ fees in excess of thirty percent (30%) of the GSA absent unique circumstances. As a result, Class Counsel should address whether any such unique circumstances exist. Additionally, at the Final Approval hearing, Plaintiff and Class Counsel must provide detailed declarations describing circumstances to justify the requested enhancement award and addressing the factors set forth in <i>Golba v. Dick’s Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation. Plaintiff to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
110	Fritch vs. The Coca-Cola Company 2023-01313737	1. Motion for Final Approval of Class/PAGA Settlement 2. Order to Show Cause re: Monetary Sanctions Motion for Final Approval The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Nicole Fritch’s Motion for Final Approval of Class Action and PAGA Settlement is GRANTED. This is a putative wage-and-hour class action and PAGA settlement. On March 21, 2023, Plaintiff Nicole Fritch, on behalf of the State of California as a private attorney general (“Plaintiff”), filed a PAGA-only Representative Action Complaint against Defendant The Coca-Cola Company (“Defendant”). The Complaint sought PAGA penalties for underlying Labor Code violations, including failure to pay all minimum and overtime wages due, failure to provide meal periods or pay premium pay, failure to provide rest breaks of pay premium pay, failure to include incentive pay in calculating regular pay rate for purposes of overtime and meal and rest break

		premium pay, failure to provide accurate wage statements, failure to pay all sick wages, failure to pay all wages at separation, unlawful deductions, failure to reimburse for business expenses, and failure to provide adequate seating. On February 1, 2023, Plaintiff had filed a putative Class Action Complaint against Defendant, as Case No. 2023-01305257, asserting thirteen (13) causes of action for various wage-and-hour violations of the Labor Code, unfair competition, wrongful termination, and violations of the Fair Employment and Housing Act. On March 30, 2023, Defendant removed the Class Action to the U.S. District Court, Central District of California, as Case No. 8:23-cv-005760JWH-E, where it is currently pending. On April 16, 2024, the federal court granted the parties' stipulation to stay the Class Action. This Court had previously stayed the PAGA-only action on July 27, 2023, because of the then-pending Class Action. On August 27, 2024, Plaintiff filed a Motion for Preliminary Approval of Class Action and PAGA Settlement. On April 10, 2025, at the second hearing on the matter, the Court granted the motion. (ROA #150.) On April 15, 2025, the Court entered the signed order granting the motion. (ROA #155.) On September 24, 2025, pursuant to the parties' agreement, Plaintiff filed the operative First Amended Class and Representative Action Complaint. (ROA #173.) On August 29, 2025, Plaintiff filed the instant Motion for Final Approval of Class Action and PAGA Settlement. The Motion seeks approval of the Class Action and PAGA Settlement Agreement, as amended by the parties' Stipulation to Modify Class Action and PAGA Settlement (collectively, "Settlement"), which provides for the settlement of Plaintiff's class and PAGA claims for the non-reversionary Gross Settlement Amount (GSA) of \$1,500,000. The GSA includes \$30,000 allocated for PAGA penalties. On September 25, 2026, the Court continued the first hearing on the motion and asked Plaintiff's counsel to address various issues. (ROA #175.) Counsel submitted supplemental materials, including a supplemental declaration by the administrator. The Class is comprised of 931 Class Members, defined as: "all individuals currently or formerly employed by Defendant in California and classified as an hourly, non-exempt employee at any time during the Class Period, excluding any <i>Flores</i> Settlement Members who worked from February 1, 2019 to February 23, 2022, and whose employment terminated on or before February 23, 2022 and who has not been since rehired by Defendant The Coca-Cola Company." The Class or Settlement Period is February 1, 2019 through August 3, 2024. The Settlement also includes 528 PAGA Employees, defined as: "all Class Members who were employed by Defendant at any time during the PAGA
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	Period, excluding any Flores Settlement Member who worked from February 1, 2019 to February 23, 2022 and whose employment terminated on or before February 23, 2022 and who has not been since rehired by Defendant The Coca-Cola Company.” The PAGA Period is January 10, 2022 through August 3, 2024. On June 30, 2025, the settlement administrator, ILYM Group, Inc., sent class notices via U.S. mail to 931 Class Members. As of September 12, 2025, 62 class notices were returned to the administrator as undeliverable and without forwarding addresses. After skip tracing, 46 updated addresses were obtained, and those class notices were remailed. Therefore, 16 class notices were deemed undeliverable. The administrator reports that as of September 12, 2025, three (3) valid requests for exclusion were received from Marlene N. Jones, Osvaldo Gomez and Terri Lee Ivers, who will not be bound by the judgment. The administrator also reports that as of September 12, 2025, the administrator received one workweek dispute from a Class Member. Defense counsel confirmed that the number of workweeks on file is correct and that the Class Member included period when she did not perform any work for Defendant The Coca-Cola Company, including periods when she was on a leave of absence. However, because she had one time punch on one day during her leave of absence, she will be credited with one additional workweek. The administrator informed the Class Member of this resolution on September 9, 2025. As of October 6, 2025, the administrator had not heard anything further from the Class Member. Therefore, this dispute is deemed adequately resolved. The administrator further reports that as of September 12, 2025, the administrator received zero (0) objections. Therefore, 928 Class Members or 99.7% of the Class is participating in the Settlement. The Court concludes that the \$1,500,000 settlement is fair, adequate, and reasonable, and in the best interests of the Class Members. The Court also concludes that the notice to the Class was adequate. Therefore, the Court certifies the defined Class for settlement purposes only. The Court concludes that an attorneys’ fee award totaling \$450,000 or 30% of the GSA, constituting a 1.27 multiplier of the lodestar amount, is fair, adequate, and reasonable for a class and settlement of this size, including considering the action’s contingent nature and the results achieved. The Court further concludes that a Class Representative Service Payment of \$5,000 is fair, adequate, and reasonable for a class and settlement of this size, considering that there was nothing extraordinary about Plaintiff’s contribution to the case. Accordingly, the Court approves the following specific awards and disbursements:
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- Attorneys' fees totaling \$450,000.00 awarded to Class Counsel;
- Litigation costs totaling \$34,371.36 awarded to Class Counsel;
- Settlement administration costs of \$10,950.00 awarded to ILYM Group, Inc.;
- Class Representative Service Payment of \$5,000.00 awarded to Plaintiff Nicole Fritch; and
- \$22,500.00 remitted to the Labor and Workforce Development Agency (LWDA) for its share of the PAGA penalties.

The Net Settlement Amount payable to all Class Members is \$977,178.64, including the \$7,500.00 in PAGA penalties to be distributed to the PAGA Employees, in accordance with the terms of the Settlement. Pursuant to the Settlement, Defendant is ordered to separately pay all employer payroll taxes owed on the wage portions of the individual settlement payments.

Within five (5) court days, Class Counsel must submit another revised Proposed Order and Judgment with the following revisions:

1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order.
2. The correct hearing date must be listed in the caption and in the first paragraph of the order.

Final Accounting is set for October 14, 2027, at 2:00 p.m. in Department CX102. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing date. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Class Members and all others in accordance with the Settlement Agreement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions.

Plaintiff is ordered to give notice of this ruling, including to the LWDA, and file proof of service within five (5) court days after entry of the Final Approval Order and Judgment.

2. OSC re Monetary Sanctions

The Court finds that counsel has provided substantial justification for failure to comply with the Court's 9/25/2025 order. (See ROA #205.) Therefore, the Court **VACATES** the OSC re Monetary Sanctions.